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Case Number: 26VECV02690 Hearing Date: September 3, 2026 Dept: T

26VECV02690 4S Corp v Shouhed

[TENTATIVE] ORDER: Defendant Rafie Shouhed's Special Motion to Strike is DENIED.

Defendant

Rafie Shouhed's Request for Judicial Notice is DENIED as to the articles' contents and GRANTED only as to the existence of the articles.

Defendant Rafie Shouhed's Evidentiary Objections are OVERRULED as to nos. 1, 2, and 8; and SUSTAINED as to nos. 3 through 7.

Plaintiff 4S Corporation's Request for Attorneys' Fees is DENIED.

Introduction

Defendant

Rafie Shouhed (Defendant) moved to specially strike Plaintiff 4S Corporation's (the court notes the only plaintiff is the corporation, not any individual) Complaint. The Complaint alleged a single cause of action (COA) for injunctive relief. Plaintiff's request for injunction seeks to prohibit Defendant from coming within 100 feet of Non-Party/Shareholder Shahriar Shouhed and Plaintiff's business property, Valley Car Wash.

[NOTE: The motion has a typographical error in the Table of Authorities. The Table of Authorities cites to "Granny Purps, Inc. v County of Santa Cruz (2020 53 Cal.App.5th 71)." (See Table pg.

ii:24.) The correct citation is 53 Cal.App.5th 1. The error only appears in the Table of Authorities. The citation in the body of the P&As is correct. (See Motion pg. 15:19.) Please be careful in your proofreading as the court may consider whether AI was involved in the preparation.]

Procedure

Defendant's Request for Judicial Notice (RJN) requested that the Court take judicial notice of the existence and contents ten separate news articles. However, the truth of the contents of a news article is not judicially noticeable. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194.) To the extent, Defendant is requesting judicial notice of the articles' contents, the request is denied. The Court only takes judicial notice of the existence of the news articles.

Defendant's RJN is DENIED as to the contents of all the articles and GRANTED only as to the existence of all the articles.

Discussion

Defendant

asserted that the claim for injunctive relief is grounded upon Defendant's right to petition and free speech and the entire Complaint should be stricken. (Notice pg. 2:4-5.) The Special Motion to Strike is a two-step process. The moving party defendant has the initial burden to show that the claims are based upon protected activity. (Code Civ. Proc., sec. 425.16[1]; *Briganti v. Chow* (2019) 42 Cal.App.5th 504, 508.) If the initial burden is met, the burden transfers to the opposing party plaintiff to show a probability of prevailing on the claims. (*Id.*)

Defendant asserted that the claims against him are covered under three subdivisions of the Anti-SLAPP statute: (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest."

(Sec. 425.16(e)(2), (3), and (4).) Defendant having the initial burden must show that Plaintiff's claims are prohibited under the Anti-SLAPP statute. Plaintiff's Complaint requested injunctive relief against Defendant and the prohibition requested is to ban Defendant from coming "within 100' of Shahriar and /or the Property". (Compl. Prayer, par. 1.) Plaintiff further requested any additional equitable relief and attorneys' fees. (Compl. Prayer, par. 2-3.) A plain reading of the requested relief does not implicate any of the factors of the Anti-SLAPP statute because the injunctive relief only involves restraining Defendant's proximity to Shahriar and the Property. But the Court reviewed the grounds upon which the injunctive relief is being requested. Plaintiff's grounds to support the request for injunctive relief include claims of "verbal and even physical altercations with Shahriar at the business premises ... including grabbing Shahriar by the shirt at the Property with such force that he tore Shahriar's shirt ... [and engages in] aggressive behavior that deters customers from patronizing 4S's business such that he has become an outright nuisance to the business." (Compl. par. 7.) The request for injunctive relief is also grounded upon claims that Defendant is using "the Property to hold highly disruptive impromptu "press conferences" in support of his [pending personal injury/civil rights] lawsuit against the Immigration and Customs Enforcement Agency ("ICE)". (Compl. par. 8.) Based upon these claims, Plaintiff alleges that Defendant's verbal/physical altercations and press conferences are a nuisance to and disruptive to Plaintiff's business. (Compl. par. 12.) Defendant's motion is only based upon Plaintiff's claims related to the press conferences and ignores Plaintiff's claims related to Defendant's verbal and physical altercations disrupting Plaintiff's business. Because there is no argument that Defendant's disruptive behavior based upon altercations is prohibited under the Anti-SLAPP statute, at minimum, there are grounds to support the request for injunctive relief. Having verbal or physical altercations at the parties' business does not present facts to support any exercise of a right to free speech or petition. The physical and verbal altercations are only seen as a private dispute, and specifically a private dispute between the two shareholders of Plaintiff. Where parties have filed a special motion to strike only to the entire complaint, without identifying individual claims or allegations that should be stricken, then courts may deny the anti-SLAPP motion where the complaint has at least one good claim. (Park v. Nazari (2023) 93 Cal.App.5th 1099, 1106.) Because Defendant requested to strike the entire Complaint and ignored the request for injunctive relief based upon the claims related to Defendant's altercations with Shahriar at Plaintiff's business, the entire

Complaint can survive the special motion to strike. Good cause exists to deny the special motion to strike the entire Complaint because Defendant failed to address all claims that supported the request for punitive damages.

Defendant's special motion to strike the "entire" Complaint is DENIED.

To the extent that Defendant sought to strike only the allegations related to Defendant's "impromptu press conferences" (Compl. pars. 8 and 12), the Court continues with the analysis to resolve the singular issue related to Defendant's press conferences. As alleged in the Complaint, Defendant's press conferences relate to Defendant's pending personal injury/civil rights lawsuit against ICE stemming from an ICE enforcement action at Plaintiff's business. Plaintiff alleged that Defendant's lawsuit arose out of Defendant deliberately placing himself in harm's way and that Defendant boasted to other family members and friends that he will collect "millions of dollars" from the incident with ICE. (Compl. par. 8.) The injunctive relief claim based upon the press conferences is only to limit the location of the press conferences. Plaintiff seeks to prohibit the press conferences from being conducted on Plaintiff's property. Nothing in this action is seen to prohibit Defendant from conducting press conferences outright or to stifle Defendant from even speaking to the press or to somehow limit Defendant's statements or the content of Defendant's press conferences. To the extent Plaintiff succeeds in the instant action, the potential result would only be to prohibit the location of the press conference and there would be no injunction banning Defendant's press conferences outright. Defendant could, for all intents and purposes, hold his press conferences across the street from Plaintiff's property. Because this action is not seeking to prohibit Defendant's speech or prohibit Defendant's from making statements to the press about the incident with ICE or Defendant's lawsuit against ICE, the Court is not persuaded that Plaintiff's claim involves statements about matters under review by the Court (i.e., Defendant's personal injury/civil rights lawsuit against ICE). (Sec. 425.16(e)(2).) Based upon this subdivision, the Court finds that Defendant did not meet his initial burden to show protected activity.

As to Defendant's argument that the claim involves protected activity because the claim involves statements made in a public place regarding an issue of public interest and/or any other exercise of right to petition or speech in connection with a public issue or an issue of public interest (Sec. 425.16(e)(3) and (4)), the Court is not persuaded that the press conference was

held in a public place and/or involved issues of public interest. The press conference was allegedly held on Plaintiff's property, which is private property open to the public. The Court is not convinced that sufficient facts are provided to show that Plaintiff's private property, which is open to the public, can be a public place. (See *Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 259; *Ralphs Grocery Co. v. United Food & Commercial Workers Union Local 8* (2012) 55 Cal.4th 1083, 1104; *Robins v. Pruneyard Shopping Center* (1979) 23 Cal.3d 899, 910-911.) However, it is undisputed that a television broadcast would be considered a public forum. But the claims in this lawsuit are not to prohibit or stifle Defendant's statements to the press. Such result would appear to be tangential/incidental to the claims in the Complaint because Defendant could continue to hold his press conferences outside of Plaintiff's property even if Plaintiff were to prevail in the instant lawsuit. Without alleging a public place or public forum to be at issue, the argument that Plaintiff's claims are prohibited under the third factor of the Anti-SLAPP statute is not persuasive. Further, the Court is not persuaded that the statements made to the press involve an issue of public interest (i.e., subdivisions 3 and 4) since the press conferences involve statement regarding the events that injured Defendant, individually, and Defendant's private lawsuit for his own personal injuries and civil rights. Defendant's attempt to link his claims against ICE to the larger debate over immigration and ICE enforcement of immigration laws is unpersuasive because there is no allegation in the instant action to show that Defendant's statements to the press are in protest of immigration policy or ICE enforcement tactics. The statements appear to be limited to Defendant's individual claims for personal injury and civil rights violations against ICE. The Court is not persuaded that subdivision (3) and (4) apply and act to protect Defendant.

The Court finds that the claims related to Defendant's press conferences are not covered by subdivisions (2), (3), or (4) of the Anti-SLAPP statute and Defendant did not meet his initial burden on the motion. The burden did not transfer to Plaintiff to show a probability of prevailing on the merits.

The special motion to strike, to the extent applicable to the allegations related to Defendant's press conferences, is DENIED.

Plaintiff

requested attorneys' fees because Plaintiff asserted that the motion was frivolous. If the court finds a special motion to strike is "frivolous or is solely intended to cause unnecessary delay," it is required to award costs and reasonable attorney fees "pursuant to Section 128.5" to a "plaintiff prevailing on the motion." (Sec. 425.16(c); Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131; Olive Properties v. Coolwaters Enterprises, Inc. (2015) 241 Cal.App.4th 1169, 1177.) Preliminarily, Plaintiff failed to identify an amount in fees to be awarded. Without identifying a specific amount to award in fees, Defendant is deprived of proper notice and opportunity to be heard on the issue of attorneys' fees. The Court, however, rules on the merits of the motion. The Court does not find the motion to be frivolous and the motion, despite being unsuccessful, presented argument based upon law and fact. Plaintiff's request for fees is unpersuasive.

Plaintiff's request for attorneys' fees is DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.

[1] All further references to statute are to the Code of Civil Procedure, unless otherwise identified.